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File No.: AI/00264/2023
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RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On October 15, 2020, a complaint was filed with the Spanish Agency for Data Protection against A.A.A. (hereinafter, the respondent).

The reasons for the complaint are as follows:

The respondent has sent mass informative/advertising emails with an open mailing list, in which the email accounts of all recipients can be seen. Furthermore, those individuals can access my email. The purpose of the message is to inform the recipients, apparently parents of children participating in one of the football courses offered by CD ELITE MADRID, whose responsible party appears to be the person who signed the email (sent from a personal Gmail address, with the subject "cdelitemadrid" and with an attached .docx "Dear parents of the students") and against whom the complaint is directed.

A copy of the message, dated September 14, 2020, is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on December 21, 2020, as recorded in the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

THIRD: To identify the complainant, their NIF was requested from the State Agency for Tax Administration, which responded on November 3, 2020, as follows: "the requested data could not be obtained with the information provided."

FOURTH: On February 11, 2021, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

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3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data can only process such data in accordance with the instructions of the controller, unless required to do so by Union law or the law of the Member States.

III

Principles relating to processing

Letter f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

IV

Conclusion

Prior to the initiation of sanctioning proceedings, it is necessary to identify the alleged responsible party for the administrative infringement.

Article 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, regarding the initiation agreement in sanctioning procedures, establishes the following:

"1. The initiation agreement shall be communicated to the instructor of the procedure, with the transfer of any actions existing in this regard, and shall be notified to the interested parties, understanding in any case that the accused is included. Likewise, the initiation shall be communicated to the complainant when the regulatory norms of the procedure so provide.

2. The initiation agreement must contain at least:

- a) Identification of the person or persons allegedly responsible.

..."

Due to the lack of the Tax Identification Number (NIF) of the party being claimed, it was requested from the Tax Agency for identification purposes.

The Tax Agency has responded to the Spanish Data Protection Agency that it has been unable to locate the requested NIF, which aims to identify legal persons and entities without legal personality for tax purposes.

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Therefore, although the complaint submitted could constitute an infringement of the referenced data protection regulations, it is not possible to initiate sanctioning proceedings due to the lack of tax identification of the alleged responsible party. Without prejudice to the fact that if this data were known by the complainants, they could provide it to this Agency, which would continue the proceedings after verification.

Thus, as it has not been possible to attribute responsibility for the processing in the sending of the email with the addresses of the recipients without blind copy, in accordance with what was indicated by the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Data Protection Agency

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